

On Track, But...

...an early resolution to a dispute over a land parcel in Mumbai will help expedite India's first bullet train project

BY MANISH PANT

► **AFTER FACING LAND** acquisition hurdles in Maharashtra for more than three years, the country's first high-speed or bullet train project appears back on track, after a new government came to power in the state in June 2022. The progress is welcome after the sharp slowdown in the pace of work witnessed during the previous Uddhav Thackeray-led Maha Vikas Aghadi government's 31-month tenure from November 2019, which often led to speculation that the Mumbai-Ahmedabad corridor, already three years behind schedule, might get delayed further. Thackeray had gone on record criticising the high-profile project, and questioned its benefits.

However, one challenge remains: the state's bid to acquire 9.69 acres of land belonging to Godrej & Boyce Manufacturing Co. in Mumbai's Vikhroli has not yet come through. In a plea filed with the Bombay High Court, the company has described the move as "illegal and bad in law". Challenging the state's civil suit, it has questioned an amendment to the Land Acquisition Act of 2013, exempting the project from social impact assessment and described the ₹264-crore compensation offered as "inadequate", compared to the ₹572 crore proposed earlier. Since 2019, the state government and the company have been locked in a bitter dispute over the land that is proposed to be developed as an entry point to the underground part of the project.

Opposing the Godrej & Boyce petition on behalf of the National High-Speed Rail Corporation Ltd (NHSRCL) and the Central government, Addi-

tional Solicitor General Anil Singh told the High Court bench of Justice R.D. Dhanuka and Justice M.M. Sathaye that the delay had resulted in a cost escalation of up to ₹1,000 crore.

The High Court bench finished hearing arguments on December 26 and will be pronouncing its judgement after its winter break.

"Supreme Court data shows nearly two-thirds of all disputes related to land acquisition involve contest to the calculation and payment of the actual market value for the land, whether in terms of the principle on which such calculation was made, or the way it was paid, or both. In addition to that, there are a large number of opponents who challenge the legitimacy of the land acquisition or procedural lapses," points out Subhankar Mitra, MD (Advisory Services) of real estate advisory Colliers International India.

An analyst with another real estate services firm, requesting anonymity, says that for infrastructure projects involving land acquisition in urban areas, the Central government needs to come up with a compensatory mechanism that factors

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Of the 508-km corridor, 156 km of the track lies in Maharashtra, 4 km in Dadra & Nagar Haveli and 348 km in Gujarat